

25SMCP00007 25SMCP00007

County: los-angeles

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Case Number: 25SMCP00007 Hearing Date: August 13, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

13, 2026

CASE NUMBER

25SMCP00007

MOTION

Motion

for Summary Adjudication

MOVING PARTY

Plaintiff Antonio Escobar, M.D.

OPPOSING PARTY

Defendant

The Regents of the University of California

MOVING PAPERS:

Notice

of Motion and Motion for Summary Adjudication; Memorandum of Points and Authorities

Declaration

of Nishka Khanna

Separate

Statement of Undisputed Material Facts

OPPOSITION PAPERS:

Opposition to Motion for Summary Adjudication;
Memorandum of Points and Authorities

Declaration of Steven Dubinett,
M.D.

Declaration of Jean-Paul P. Cart

Response to Plaintiff's Separate
Statement

REPLY PAPERS:

Reply

in support of Motion for Summary Adjudication

BACKGROUND

This case arises from allegations that Defendants wrongfully terminated Plaintiff's employment.

On January 6, 2025, Plaintiff Antonio Escobar, M.D. ("Plaintiff") filed suit against Defendant The Regents of the University of California ("UCLA") and Thomas Whalen ("Whalen") alleging four causes of action for (1) violation

of Labor Code section 432.7; (2) wrongful termination in violation of public policy; (3) declaratory and injunctive relief; and (4) petition for writ of administrative mandamus.

On September 15, 2025, the Court granted Plaintiff's Petition for Writ of Mandamus, finding UCLA's decision to terminate Plaintiff based on information contained in a sealed, judicially dismissed Juvenile Court case (and Plaintiff's failure to disclose such information), violated Labor Code section 432.7, subdivision (a) and UCLA's administrative determination otherwise was not supported by substantial evidence. (See Minute Order, Sept. 15, 2025.)

Plaintiff now moves for summary adjudication of UCLA's liability on the first cause of action for violation of Labor Code section 432.7, such that only damages remain for trial. UCLA opposes the motion and Plaintiff replies.

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." 2(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (hereafter Aguilar).) 2 "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." 2 (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility." (Aguilar, supra, 25 Cal.4th. at p. 840

[cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for

summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., §

437c, subd. (n); Union Bank v. Superior

Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact

exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

“[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (Fisherman's Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

“An employer also shall not [...] utilize, as a factor in determining any condition of employment including hiring, promotion, termination, or any apprenticeship training program or any other training program leading to employment, any record concerning or related to an arrest, detention, processing, diversion, supervision, adjudication, or court disposition that occurred while a person was subject to the process and jurisdiction of the juvenile court.” (Lab. Code, § 432.7, subd. (a)(2).)

a. Plaintiff's

Evidence

In support of the motion, Plaintiff advances the Court's September 15, 2025 Minute Order, where the Court determined that UCLA's stated decision to terminate Plaintiff based on information contained in a sealed, judicially dismissed Juvenile Court case (and on Plaintiff's failure to disclose such information contained therein) violates Labor Code section 432.7, subdivision (a). The Court explained:

Notwithstanding, the record does demonstrate that UCLA improperly utilized the information in the case disposition documents as a factor in determining a condition of Plaintiff's employment, namely, its decision to terminate his fellowship, in violation of Labor Code section 432.7, subdivision (a). Defendants' arguments to the contrary, are unavailing.

As plainly stated in the July 5 termination letter, "your election to participate in 52 sexual boundaries treatment sessions in response to an accusation brought against you for violations of California Penal Code Section 288(b)(1), presents material and serious issues of concern for the safety and wellbeing of the pediatric patients at UCLA Health." (AR 29.) Further, UCLA's July 23 letter again reiterates that the decision to terminate Plaintiff's employment stemmed from the allegations alleged against him and from Plaintiff's failure to disclose to UCLA information about the case, specifically Plaintiff's election to participate in 52 sexual boundaries sessions. (AR 65.)

Thus, while substantial evidence supports UCLA's position that its initial decision to put Plaintiff on an investigatory leave and its later request for disposition documents for Plaintiff's case did not constitute a knowing violation of the Labor Code, its utilization of information gleaned from those disposition documents (specifically, the gravity of the allegations that Plaintiff had been charged with lewd or lascivious acts upon a child under the age of 14 by use of force, violence, duress, menace, or fear, in violation of Penal Code section 288, subdivision. (b)(1), and/or the fact that Plaintiff had attended 52 sexual boundaries treatment sessions in exchange for obtaining a dismissal of his case) in its decision to terminate Plaintiff's employment did violate Labor Code section 432.7, subdivision (a). Further, UCLA's contention that its decision was based on Plaintiff's lack of candor in failing to

disclose that he attended 52 sexual boundaries treatment sessions also violates Labor Code section 432.7, subdivision (a).

In *Garcia-Brower v. Premier Automotive Imports of CA, LLC* (2020) 55 Cal.App.5th 961, the Court of Appeal noted that an employee's right to refrain from disclosing a judicially dismissed criminal conviction was protected by Labor Code section 432.7, subdivision (a). (Id. at p. 972.) Thus, to the extent UCLA's decision to terminate Plaintiff was based on his lack of candor in disclosing aspects of the juvenile case (specifically, the specific charges alleged against him and/or his election to attend 52 sexual boundaries training sessions to obtain a dismissal of his case), that also violates subdivision (a).

Thus, all the grounds UCLA gave in its July 5 and July 23 letters supporting its termination of Plaintiff's employment (i.e., the gravity of the charges, Plaintiff's participation in 52 sexual boundaries treatment sessions, and Plaintiff's lack of candor with UCLA about the case) all stemmed from information it knew pertained to a sealed, Juvenile Court matter that was judicially dismissed without a criminal conviction, in violation of the plain language of Labor Code section 432.7, subdivision (a).

(Minute Order, Sept. 15, 2025 at pp. 11-12.)

Therefore, Plaintiff has met his initial prima facie burdens of production and persuasion to demonstrate that UCLA will be unable to disprove liability for violating Labor Code section 432.7, subd. (a).

b. UCLA's Evidence

UCLA argues in opposition that the Court's decision vis-à-vis the writ of mandate is not dispositive because the writ of mandate was limited to an examination of the administrative record and the scope of the issues decided was whether substantial evidence supported UCLA's determination that its termination of Plaintiff did not violate Labor Code section 432.7, subdivisions (a) and/or (g).

By contrast, the scope of the issues to be decided in connection with Plaintiff's first cause of action is whether, in view of all evidence

UCLA is able to marshal, including evidence outside the administrative record, UCLA's termination of Plaintiff actually violated Labor Code section 432.7, subdivisions (a) and/or (g).

The Court agrees that due process requires that UCLA be given an opportunity to provide evidence in this matter that it did not actually violate Labor Code section 432.7, subdivision (a).

In this regard, UCLA advances the Declaration of Steven Dubinett, M.D., which provides, in relevant part:

3. My decision to terminate Dr. Escobar from the Program was prompted by information UCLA learned from Dr. Escobar during a February 14, 2024, meeting in which UCLA compliance investigator Thomas Whalen and DGSOM Associate Dean Nelson SooHoo, were in attendance. While I did not attend this meeting, I was informed that the purpose of the meeting was to discuss Dr. Escobar's potential return to the Program, and that Dr. Escobar volunteered at the meeting he had completed sexual boundaries training sessions in connection with the allegations of sexual misconduct against children that had been made against him.

4. I am aware that Dr. Escobar subsequently provided Mr. Whalen with a document indicating that the criminal accusation brought against him had been resolved, and that the record was sealed. The document also indicated that 52 weeks of sexual boundaries training had been completed.

5. Dr. Escobar's disclosure that he had completed sexual boundaries training was highly significant to me because Dr. Escobar was seeking to return to a pediatric clinical training environment, where patient safety, professional boundaries, and trust in the trainee's judgment, discipline, and candor are paramount. My decision to terminate Dr. Escobar from the Program was based upon my view that DGSOM should take steps to protect its juvenile patients from known potential risks, and that considering the information provided by Dr. Escobar, he could not remain in the Program. My decision was not fueled by an attempt to punish or harm Dr. Escobar, but rather, was motivated by patient safety concerns.

6. In reaching my decision to terminate Dr. Escobar from the Program, the core fact motivating my decision was that Dr. Escobar had taken sexual

boundaries training related to the allegations that had prompted his involuntary leave with pay. DGSOM learned this on February 14, 2024, when Dr. Escobar volunteered such information to Mr. Whalen and Dr. SooHoo (to my knowledge, unprompted). Had Dr. Escobar provided no further information to DGSOM after that meeting, my decision would have been the same. While Dr. Escobar subsequently provided documents to that effect, those documents did not change or motivate my decision versus only the information shared at the meeting. That such documents were mentioned in my July 5, 2024, letter was simply a matter of convenience. Further, I noted that the juvenile court had sealed certain records only to explain that while other potential employers/programs may never learn what Dr. Escobar shared with Mr. Whalen and Dr. SooHoo, DGSOM could not in good conscience ignore what Dr. Escobar had voluntarily disclosed.

(Dubinett Decl. ¶¶ 3-6.)

The Dubinett Declaration does not create any triable issues of material fact as to whether UCLA's decision to terminate violated Labor Code section 432.7, subdivision (a).

As Dubinett concedes, the decision to terminate Plaintiff was due to (1) the allegations of sexual misconduct against children that had been made against Plaintiff in connection with the underlying sealed Juvenile Court matter and (2) Plaintiff's completion of 52 sexual boundaries sessions in connection therewith.

(Dubinett Decl. ¶ 3.) Thus, UCLA has not created any triable issues of material fact disproving that it utilized information pertaining to a sealed, Juvenile Court records in making its decision to terminate Plaintiff's employment, in violation of Labor Code section 432.7, subdivision (a)(2).

Importantly, Labor Code section 432.7, subdivision (a) does not proscribe terminating an employee out of animus or in an attempt to punish or harm. (See Dubinett Decl. ¶ 5.) Nor does it provide an exception where patient safety may be of concern. (Ibid.) Rather, it proscribes utilizing, in connection with an employment decision, information contained in Juvenile Court records, as UCLA has repeatedly conceded it has done.

Nor does the Court find material the distinction UCLA

now tries to draw that it relied on Plaintiff's recitation of information contained in the underlying sealed Juvenile Court records in making its decision, and not the actual underlying Juvenile Court records themselves, even though it asked for and obtained those records before issuing its written decision to Plaintiff.

As discussed above and in connection with the Court's writ of mandate decision, UCLA's July 23 letter also cited Plaintiff's lack of candor in previously disclosing the details of his Juvenile Court case as part of its decision to terminate Plaintiff, which is also protected, pursuant to *Garcia-Brower v. Premier Automotive Imports of CA, LLC* (2020) 55 Cal.App.5th 961, 972. Thus, UCLA's decision to terminate Plaintiff is premised paradoxically both on Plaintiff's candor and lack of candor in disclosing the facts underlying his Juvenile Court case. Either way, the decision is an improper utilization of information contained in sealed Juvenile Court records, in violation of Labor Code section 432.7, subdivision (a)(2).

This does not involve a situation where UCLA independently conducted its own investigation into underlying conduct that happened to also form the basis of an arrest or court proceeding, like in *Cranston v. City of Richmond* (1985) 40 Cal.3d 755, 773-774, cited by UCLA. UCLA has not advanced any evidence that any victims reached out to it directly, spurring its investigation. Nor does the fact that Plaintiff took additional training classes in a vacuum form any logical basis to terminate him. Rather, UCLA relied on information Plaintiff disclosed about the underlying Juvenile Court case. Specifically, that Plaintiff attended 52 sexual boundaries sessions in connection with underlying charges in that case. And it is those underlying charges that caused UCLA to terminate Plaintiff's employment, out of concern for patient safety. (Dubinett Decl. ¶ 5.)

Thus UCLA has not created any triable issues of material fact that it did not violate Labor Code section 432.7, subdivision (a) by terminating Plaintiff based on his disclosure that he attended 52 sexual boundaries sessions in connection with a sealed Juvenile Court case.

CONCLUSION AND ORDER

Finding Plaintiff has met his prima facie burdens of production and persuasion that UCLA will be unable to prove that its termination of Plaintiff did not violate Labor Code section 432.7, subdivision (a), and UCLA has not

created any triable issues of material fact otherwise, the Court grants Plaintiff's motion for summary adjudication.

Further, the Court will enter the proposed Order lodged on May 20, 2026 in conformity with the ruling.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 13, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court